

MEMORANDUM OF AGREEMENT (MOA)
between
CONTRACTING AGENCY NAME
and
CUSTOMER AGENCY NAME
for
DESCRIPTION OF SERVICES (Capstone/Project Title)

I. PARTIES

The parties to this MOA are the **CONTRACTING AGENCY**, hereafter referenced as "***CA1***" and the **CUSTOMER AGENCY** referenced as "***CA2***".

II. PURPOSE

The purpose of this Memorandum of Agreement (MOA) is to specifically identify the scope of services to be provided, establish the authorized individual or agency as the decision-maker or owner in the agreement, as well as the financial and human resources that are required for the provision of services. This MOA will also clearly identify the roles and responsibilities of each party as they relate to providing the consolidated services that serve both ***CA1*** and ***CA2***.

III. LINES OF AUTHORITY

- 1 ***CA1*** and ***CA2*** are legislatively established as separate agencies with distinct appropriations.
- 2 ***CA2*** designates ***INDIVIDUAL OR POSITION*** as having the final authority on all policy or procedural matters pertaining to ***CA2***.
- 3 The relationship between ***CA1*** and ***CA2*** as defined by this MOA is one of Contractor to customer.
- 4 ***INDIVIDUAL OR POSITION*** at ***CA1*** and ***INDIVIDUAL OR POSITION*** at ***CA2*** will be the Contract Administrators for this MOA.

IV. CUSTOMER AGENCY RESPONSIBILITIES

CUSTOMER AGENCY shall undertake the following activities during the duration of the MOA term:

- 1 Ensure adherence of **CA2** to applicable federal and state laws and regulations and program guidelines.
- 2 Participate in training and meetings as requested by **CA1**.
- 3 Review and approve all documentation evidencing **CA1**'s performance of services as set forth in the **DESCRIPTION OF SERVICES** and monitor **CA1**'s compliance with the MOA.
- 4 Promptly reimburse allowable expenses according to the terms and conditions set forth in this MOA.
- 5 Be responsible for sharing results of security audits, internal audits or APA findings that pertain to the services set forth in this MOA and/or the supporting infrastructure with the **CA1**.
- 6 *Additional responsibilities should be included if required.*

V. CONTRACTING AGENCY RESPONSIBILITIES

CONTRACTING AGENCY shall undertake the following activities during the duration of the MOA term:

- 1 Offer training and meetings as necessary to meet the needs of **CA2** in order to enhance effectiveness of ***DESCRIPTION OF SERVICES (Capstone/Project Title)*** provided per this MOA.
- 2 Be responsible for sharing results of security audits, internal audits or APA findings that pertain to the services as set forth in this MOA and/or the supporting infrastructure with the **CA2**.
- 3 Additional responsibilities should be included if required.*

VI. CONTRACTING AGENCY and CUSTOMER AGENCY RESPONSIBILITIES

Both agencies shall jointly agree to undertake the following activities during the duration of the MOA term:

- 1 Work cooperatively to resolve any issues that arise during the course of administering this MOA.
- 2 Regularly monitor and evaluate the provision of services set forth by this MOA; and,
- 3 Modify and/or revise the scope of services as mutually agreed to in writing by both parties. Major updates or additional features beyond the agreed scope will not be accepted unless accompanied by a separate written agreement and additional payment.
- 4 *Additional responsibilities should be included if required.*

VII. DESCRIPTION OF SERVICES

Enter specifics relative to the services covered by this MOA. They can follow this format:

CA1 has acquired an online tool/system to perform specific services that can be used by multiple agencies with the same or similar need. Use of this tool/system is shared between two or more agencies. Data will/will not be shared between the agencies.

CA1 offers the online tool/system as an accommodation to CA2 that has the express requirement. This tool/system is a shared online service to reduce the burden on customer agencies for duplicating purchases of the same tool/system or competing tools/systems and reduce the overall cost to the Commonwealth of Virginia.

VIII. COMPLIANCE TO REGULATIONS

In accordance with the Data Privacy Act of 2012 (Republic Act No. 10173) and the National Privacy Commission (NPC) Circular No. 16-03 on Personal Data Breach Management, if an employee from either agency, or subcontractor, or agent of either, knows or reasonably suspects that any personal data (personal information or sensitive personal information) obtained has been lost, stolen, or otherwise subject to unauthorized access, the discovering agency shall immediately notify the other through the appropriate Program Manager and their respective Data Protection Officer (DPO).

Furthermore, the responsible agency must notify the National Privacy Commission (NPC) and the affected data subjects within seventy-two (72) hours upon knowledge of, or reasonable belief that, a personal data breach requiring notification has occurred. The notification must include the following information:

- a. Cause(s) of the breach incident
- b. Date(s) of the breach incident
- c. Estimated size of the affected population (number of personal records)
- d. The type of data exposed
- e. Any mitigating factors

In the event of a security breach, CA1 and CA2 must comply with all notification actions and data protection protocols as required by Philippine law and NPC regulations. Any costs associated with the breach will be the responsibility of the agency that caused the breach.

Enter additional regulations that may pertain to this MOA.

IX. TERMS OF AGREEMENT

Revisions and Modifications: Minor revisions necessary for project completion are acceptable. Major updates or additional features beyond the agreed scope will not be accepted unless accompanied by a separate written agreement and additional payment.

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Termination: Either party may request the termination of this Agreement for a valid reason, subject to proper notification and approval. Work completed up to termination shall be compensated accordingly.

Duration (if applicable): This Agreement takes effect on the specified date and remains valid until the Student/Team has successfully passed Capstone 2, unless terminated earlier by mutual consent.

Describe the terms and conditions under which this agreement may be modified or terminated by the parties.

X. EFFECTIVE DATE AND SIGNATURE

This MOA shall be effective upon the signature of authorized officials of **CA1** and **CA2**. It shall continue in perpetuity with yearly amendments as appropriate unless canceled in its entirety by either party in accordance with the applicable clauses contained herein. The terms will be reviewed annually. The MOA is automatically renewed unless written notice to modify the agreement is given by either party within 60 days of new fiscal year. The MOA can be terminated anytime by either party with written notice 60 days in advance of termination date.

CA1

CA2

(Signature)

(Signature)

(Print Name)

(Print Name)

(Title)

(Title)

(Date)

(Date)